weighed heavily on the judge's mind. This led the judge to conclude that the only part of Mathura's account that he was willing to believe was that 'she had sexual intercourse', 'in all probability' with Ganpat.

The sessions court judge proceeded to reconstruct the events that took place that night in an extraordinary way. In the court's view, Mathura had chosen to engage in consensual sexual intercourse with Ganpat. The doctor's testimony confirmed that she was 'habituated to sexual intercourse' – the logic being that a woman who had had sex previously was more likely to consent to having sex in the future, even if with a complete stranger in unfamiliar territory. That still begged the important question of why Mathura would allege rape in circumstances where she engaged in consensual sexual intercourse. The court's answer to this question was that Mathura 'invented the story of rape' in order to 'sound virtuous'. After all, the crowd gathered outside the police station 'included her lover Ashok' as well as her employer Nunshi, who was 'angry' and would have suspected 'something fishy'.

With the stroke of a pen, Mathura was transformed into a woman whose insatiable desire for sex led her to have consensual intercourse with a constable at a police station in the middle of the night, with her family and friends waiting outside. In the court's opinion, she then devised a rape allegation in order to protect her 'honour'. Other important pieces of evidence were cast aside based on ludicrous assumptions. Stains on Mathura's pyjamas were accounted for as having likely been caused by Ashok – the two were, after all, 'very much in love'. The court noted that Ganpat himself was 'no novice', and therefore stains on his pyjamas could have arisen from other previous sexual encounters.

The case then proceeded to the Nagpur bench of the Bombay High Court. Over four years had now elapsed since the incident at Desaiganj police station. In October 1976, the high court took a different view of the facts and evidence. It found Mathura's account credible, and noted that there was a difference between consent and 'passive submission'. The defendants were strangers and Mathura was at the police station in the context of a complaint filed by her brother. The power dynamics between